

NATIONAL AGENCY FOR EXAMINATIONS (NAE) NATIONAL EXIT
EXAMINATION FOR STUDENTS OF ETHIOPIAN LAW SCHOOLS

2003- 2015 E.C ACADEMIC YEAR Employment Law

1. Which one of the following is necessarily true under Ethiopian labour law?
 - A. Regarding its form, probation is a matter left for parties' agreement.
 - B. Grounds of suspension of contract of employment can be lawfully expanded by collective agreement.
 - C. **Where the terms of collective agreement** are inconsistent with the provisions of labor law, the latter prevails.
 - D. None

2. Identify the wrong statement about termination of contract of employment under Ethiopian labour law.
 - A. An employer is absolutely prohibited from dismissing a worker who is under suspension.
 - B. An employer whose right to terminate a contract of employment is barred by period of limitation (1 month), surrenders his right to terminate altogether (based on same ground) subsequently.
 - C. Where contract employment is terminated by notice, the termination would be effective as of the date of issuance of the notice.
 - D. All**
 - E. None

3. Identify the correct statement under Ethiopian employment laws (in particular labour and civil servant law):
 - A. Where an employer fails to terminate a contract of employment made for definite period despite the period expires, the contract would be presumed to have been made for indefinite period.
 - B. Notice in termination of contract of employment puts the worker under default in that the worker, failing to rectify the cause which necessitates the notice, would be dismissed out rightly.
 - C. In reducing work force the employer may validly take disability in to account (based on productiveness). i.e persons with disability can be reduced first.
 - D. The contract of a worker who is under maternity leave may not be terminated on any ground until the leave expires.
 - E. None

4. Summary dismissal occurs where:

- A. Parties end their contract because of events beyond their control.
- B. The employer terminates the contract without notice alleging worker's misconduct.
- C. The worker terminates the contract without notice pushed by employer's misconduct.
- D. The employer terminates the contract with notice but claims worker's misconduct.

5. Explain briefly why labour law is inapplicable to domestic workers.[4%]

6. Of the following types of claims that can be made by a worker which one has the shortest period of limitation as per Labour Proclamation No. 377/2003?

- A. Payment for overtime work
- B. Compensation for employment injury
- C. Claim for reinstatement in case of wrongful dismissal
- D. Claim for severance pay
- E. Claim for payment of unutilized annual leave in the event of redundancy

7. The contract of employment, collective agreement, work rules drawn up by the employer, and the Labour Proclamation No. 377/2003 are the main legal instruments that govern the rights and obligations of the employer and the employee. Which of these legal instruments has primacy of application to a particular labour case?

- A. A collective agreement
- B. Labour Proclamation No. 377/2003
- C. A contract of employment
- D. Whichever is beneficial for the worker
- E. Whichever is agreed by the employer and the worker

8. Which of the following matters relating to employee-employer relationship is not left for the employer's discretionary action as per the Labour Proclamation No. 377/2003?

- A. Promotion standards.
- B. Salary scale.
- C. Setting grounds for dismissing workers.
- D. Appraising workers' performance.
- E. Demanding workers to take part in sponsored skills development trainings.

9. Because of its special position as employer, the Labour Law recognizes extensive prerogative powers of the employer in the employment relationship, spanning from setting work rules to deciding on incentives for workers. What is the fundamental requirement provided by the Ethiopian Labour Law that the employer cannot disregard in exercising these prerogative powers?

- A. Maximizing profit
- B. Equal treatment of workers irrespective of their sex, religion or marital status
- C. Economic efficiency
- D. Increasing productivity
- E. Enhancing workers' skills

10. Which of the following features of employment relationship is not addressed by the Federal Civil Service Law?

- A. Occupational safety
- B. Employment security
- C. Collective employment relation
- D. Maximum working hours
- E. Maternity protections

11. An essential requirement for engaging in collective bargaining as per the Ethiopian Labour Law is

- A. existence of employers association
- B. willingness of the employer for collective bargaining

- C.** permission from the Ministry of Labour and Social Affairs
- D.** drawing up rules of procedure of the bargaining process
- E.** appointment of a neutral third party mediator to facilitate negotiation

12. Of the following propositions regarding occupational safety at the workplace, the one that does not apply to the worker is

- A.** Observe safety and accident prevention protocols
- B.** Give aid when accident occurs at the workplace
- C.** Report any workplace risks of accident to the employer
- D.** Properly use safety appliances
- E.** Acquire safety protection tools

13. In respect of which of the following working conditions is a minimum requirement NOT provided by the Labor Law?

- A.** Hours of work
- B.** Rest and leisure
- C.** Occupational safety
- D.** Wage
- E.** Employment security

14. Which one of the following remedies is available for an employee lawfully terminated but without being given the appropriate notice period?

- A.** Severance pay
- B.** Reinstatement to work with back pay
- C.** Payment in lieu of the salary for the notice period
- D.** Compensation for termination of employment
- E.** Criminal liability of the employer

15. Severance payment is due to a worker, whose contract of employment is terminated on any of the following grounds, EXCEPT:

- A. discs on ground of participation in trade union related activities.
- B. expiry of the period for which the worker is employed.
- C. when the worker is forced to resign as a result of employer's misdeed to him.
- D. when the worker is reduced as per Article 29 of the Labor Proclamation.
- E. when the worker retires without pension or provident fund benefits.

16. Which of the following instances of injury sustained by a worker is NOT a case of employment injury?

- A. Injury sustained due to a third party's action at the workplace.
- B. Injury sustained while carrying out employer's activities during normal hours of work.
- C. Injury sustained while on board a transport service vehicle provided by the employer.
- D. Injury sustained while carrying out employer's activities outside normal hours of work.
- E. Injury sustained by worker while travelling to work on board a public transport vehicle.

17. Which of the following factors is irrelevant for the purpose of distinguishing an employee from an independent contractor for the purpose of application of Labor Proclamation No. 377/2003?

- A. Supply of tools and raw materials necessary for the work.
- B. The kind of work performed.
- C. Mutuality of obligation between the parties.
- D. The degree of control to which the service rendering party is subject to.
- E. The personal nature of the obligation assumed by the party rendering service.

18. Which of the following material facts is NOT relevant for the purpose of determining existence and extent of employer's liability for injury to a worker?

- A. Time when injury is sustained.
- B. Place where injury is sustained.
- C. Degree of worker's disability.

D. The fact that the injured worker is engaged as an apprentice.

E. The fact that the employer has taken all accident preventing measures.

19. Which of the following is common to all forms of lawful termination by the employer?

A. Severance pay.

B. Compensation.

C. Notice of termination.

D. Period of notice.

E. Misconduct of employee.

20. From among the following stipulations incorporated in Labor Proclamation No. 377/2003, identify the one that is NOT the consequence of the recognition of the long term nature of the employment relationship.

A. Rules on modification of contract of employment.

B. Stipulations on occupational safety.

C. Rules on suspension of contract of employment.

D. Stipulations as to probation period.

E. Stipulations on leave and rest for employee.

21. An aspect of the employment relationship that is regulated under the Federal Civil Service Law but NOT under the labor law is

A. hours of work.

B. annual leave.

C. occupational safety.

D. collective labor relation.

E. employment security

22. Under which of the following circumstances of termination of employment relationship is a notice period necessary?

A. Completion of the work for which the worker is employed.

B. Dismissal of a worker due to his/her misconduct at the place of work.

C. Terminations of employment because a worker is found unfit for the job due to his/her health.

D. Resignation of a worker as a result of his/her employer's misdeed to him/her.

E. Termination of employment due to retirement of the worker.

23. Suppose that Aster, who used to work in water bottling company, is forced to resign from her job due to the incessant sexual harassment she faced in her place of work and which her supervisors were not able to stop. Which of the following entitlements is NOT due to Aster under the circumstance?

A. Payment in lieu of unutilized annual leave.

B. Compensation.

C. Certificate of service.

D. Severance payment.

E. Payment in lieu of notice period.

24. Which one of the following facts absolves the employer from liability for injury sustained by a worker at the workplace?

A. Absence of fault of the employer.

B. That the employee is in a probation period.

Fault of the employee that caused the injurious accident.

D. Injury is a result of fault of fellow worker.

E. The fact that the employer has put in place all the necessary precautionary measures and safety tools.

25. Which of the following is a peculiar feature of civil servant law in Ethiopia?

A. Conditions of work are rigorously regulated.

B. It has enormous room for collective bargaining and agreement.

C. It stipulates minimum conditions of work for civil servants.

D. It does not lay down special form to conclude employment contract.

E. It governs relationship between public enterprises and their employee.

26. One of the following is a legal ground for termination of contract of employment with prior notice:

A. deceitful or fraudulent conduct during carrying out duties.

B. cancellation of the post of the worker for good cause.

C. intentional misappropriation of employer's property or fund.

D. brawls or quarrels at workplace, taking into account its gravity.

E. refuse to submit himself/herself for medical examination.

27. One of the following categories is taken as a temporary employee pursuant to the Federal Civil Servants Proclamation No 1064/2017.

A. Ministers, deputy or director generals or persons with that rank or above.

B. Members of the House of Peoples' Representatives.

C. Foreigners employed in governmental offices.

D. Judges and public prosecutors.

E. Persons in the armed forces or police.

28. Which statement best describes the term 'undertaking' under Ethiopia's present Labour Proclamation?

A. A governmental office established to serve the whole society.

B. A legal entity established to conduct lawful activity.

C. An institution established to deliver religious activity.

D. A legal entity that serves society with armed force.

E. Any branch which enjoys operational or organizational autonomy shall not be separate undertaking.

29. Among the following rights one is a special right of young workers.

- A. The right to earn wage at proper time.
- B. The right to work in safe work environment.
- C. The right to get service certificate free of payment.
- D. The right to be dignified and honored.
- E. The right not to be engaged in overtime work.

30. Which one of the following disputes is subject to Labour division appellate court jurisdiction?

- A. Claims of employment injury, transfer, promotion, training and other similar issues.
- B. Claims related to issuance of certificate service and clearance.
- C. Objection on question of jurisdiction.
- D. Disciplinary measure including dismissal.
- E. Claims related to termination of employment contract.

31. Which one of the following is not among the requirements regarding contents of a contract of employment?

- A. Clarity of rights and obligations of both the employer and the employee.
- B. A clear term in the contract that the employment may not be used for performance of unlawful acts.
- C. Inclusion of clauses regarding wages such as rate and method of calculation.
- D. Inclusion of a clause relating to the place of work.
- E. There are no requirements concerning contents of a contract of work under Ethiopian labor law.

32. Whenever there is contradiction among various labor related laws, one of the following has an overriding effect:

- A. Contract of employment concluded between a worker and an employer.**
- B. The FDRE Constitution and ILO Conventions and Recommendations.**
- C. The Labor Proclamation No.1156/2019.**
- D. The one that gives more favorable treatment to the worker.**
- E. Collective Agreement.**

33. The Civil Service Proclamation No.1064/2017 and the Labor Proclamation No.1156/2019 have similar duration in one of the following.

- A. Maternity leave.**
- B. Maximum working Hours.**
- C. Annual Leave.**
- D. Sick Leave.**
- E. Paternity leave.**

34. Which of the following statement is correct about overtime work under the Labor Proclamation No.1156/2019?

- A. All work done on weekly rest day and on public holiday is regarded as overtime work.**
- B. All work done in excess of 8 hours a day is considered as overtime work.**
- C. Overtime work is in principle allowed.**
- D. When the exceptional situations indicated under the law are fulfilled some workers have protection against overtime work.**
- E. The rate of overtime payment is only dependent upon the time during which the work is done.**

35. Which of the following leave is recognized under the Ethiopian Labor Proclamation No.1156/2019, but not under the Civil Service Proclamation No.1064/2017?

A. Paternity Leave

B. Maternity Leave

C. Union Leave

D. Annual Leave

E. Sick Leave

36. An employee of a construction company (employer) building a library in a public university as a contractor was injured by a collapsing ladder and sustained a serious bodily damage as a result. Who should be held liable to compensate the bodily damage to the employee?

A. The university.

B. The employer.

C. The employee him/herself.

D. The person who manufactured the ladder.

E. The university and the employer jointly.

37. Annual leave under the labour law differs from the civil service system because:

A. it is a paid leave under the former while it is an unpaid leave under the latter.

B. it is longer in duration under the labour law than it is under the civil service law.

C. it is open for negotiation under the labour law while it is not under the civil service law.

D. it was introduced during the military regime under the labour law whereas its introduction in the civil service system dates back to the time of Emperor Haile Sillassie I.

E. None.

38. According to the Labour Proclamation 377/2003, a certificate of service to be issued to a worker need not include:

- A. the length of service of an employee.**
- B. the amount of wage an employee was earning.**
- C. the reason for the termination of employment contract.**
- D. the job position an employee occupied.**
- E. A and B.**

39. Which of the following is true about unionization under the labour law?

- A. Union members shall determine the minimum number of membership.**
- B. Management staff is excluded from membership in trade unions.**
- C. Plurality of unions is a possibility.**
- D. B and C.**
- E. A and C.**

40. Which of the following is not a factor that is used by the law to identify a managerial employee for the purpose of exclusion from the scope the Labour Proclamation No. 377/2003?

- A. Power to lay down and execute management policies on behalf of the employer.**
- B. Power in hiring and firing workers.**
- C. Direct accountability to the top management.**
- D. Power to take disciplinary measures.**
- E. None.**

41. Which of the following situations does not constitute a form of indirect dismissal?

- A. Employer's failure to react to a female worker's complaint to sexual harassment at the work place by colleagues.**
- B. Employer's negligence to pay wages duly.**
- C. If worker is unable to give service due to employer's failure to properly provide work to be done.**

D. Employment injury sustained at the place of work due to employer's failure to take precautionary measures to avoid the danger.

E. None of the above.

42. Which of the following category of workers is treated differentially but not preferentially under the Ethiopian Labour Proclamation?

A. Young workers.

B. Foreign workers.

C. Female workers.

D. Workers with disabilities.

E. None.

43. Which of the following statements is true about termination of Employment relationship?

A. Termination of employment relationship invariably results in the payment of severance payment for the worker.

B. Most serious behavioral misconducts of workers are grounds for ordinary dismissal.

C. In case of extra-ordinary resignation, workers are not required to give advance notice to the employer.

D. As per the Ethiopian Labour Proclamation, all instances of lawful termination must be preceded by period of notice of appropriate duration given to the worker.

E. None.

44. Which of the following does not constitute the obligations of an employer for a worker who is a victim of an employment injury?

A. Paying compensation to the employee proportionate to the degree of disability.

B. Providing first aid service at the place of accident.

C. Covering the medical expenses of the injured worker.

D. Covering the funeral expenses of a worker deceased as a result of employment injury.

E. None.

45. From the following types of leaves identify the one that is not a conditional leave.

- A. **Annual leave.**
- B. Union leave.
- C. Leave for special purposes.
- D. Maternity leave.
- E. Sick leave.

46. Which of the following category of workers is treated differentially but not preferentially under the Ethiopian labour proclamation?

- A. Young workers.
- B. Non-Ethiopians.**
- C. Female workers.
- D. Workers with disabilities.
- E. None.

47. Which of the following aspects of employment relationships is not regulated as a minimum labour condition?

- A. Employment security.
- B. Occupational safety.
- C. Minimum wage.**
- D. Working hours.
- E. Weekly Rests.

48. Which of the following legal actions arising from employment relationship governed by Labour Proclamation 377/2003 has the shortest period of limitation?

- A. An action to claim payment in lieu of unutilized annual leave.
- B. An action to claim payment for overtime work.
- C. An action to claim reinstatement by unlawfully dismissed worker.**
- D. An action to claim severance payment.
- E. An action to claim unpaid salary.

49. Which of the following situations may not constitute a ground/case of suspension of contract of employment?

A. Force majeure encountered by the employer.

B. Maternity leave.

C. National call.

D. Leave without pay granted to the worker.

E. Detention of an employee for less than one month

50. Which of the following employment relationships does not come within the scope

A. Contract of apprenticeship.

B. Contract of employment of Ethiopians abroad.

C. Contract of employment of a foreigner by a business organization in Ethiopia.

D. Home-based work contract.

E. Contract of employment of young persons.

51. Which of the following statement is correct relating to collective labour relations?

A. Existence of employers' association is a necessary precondition for collective bargaining.

B. An employer may be forced into collective bargaining.

C. A collective agreement remains valid even after the dissolution of the trade union that negotiated and signed it.

D. The right to engage in strike is equally guaranteed for all class of workers governed by Labour Proclamation no.377/2003.

E. Employees can negotiate collective bargaining individually if they want.

52. Which one of the following laws is the first to come up with the concept of 'minimum labour conditions' in the development of Ethiopian labour law?

A. The 1955 Revised Constitution.

B. The Factory Proclamation of 1942.

C. The 1960 Civil Code of the Empire of Ethiopia.

D. Labour Proclamation no. 64/1975.

E. Labour Proclamation no. 377/2003.

53. Which one of the following statements is true about probation period?

A. The duration of probation period is as agreed between the employer and the employee.

B. Probation period" is presumed to exist at the inception of every employment relationship.

C. Probation period is an essential stage in the formation of contract of employment.

D. During probation period , both parties are free to terminate their relationship without giving notice.

E. A worker on probation cannot terminate his contract during the probation period without good cause.

54. From the list below, identify the one that is not used to determine existence and extent of employer's liability for employee's injury?

A. Duration of worker's disablement.

B. Degree of the worker's disablement.

C. Completion of probation period.

D. Place of injury.

E. Time of injury.

56. Which of the following leaves is recognized under the Federal Civil Servants Proclamation but not under the Labour Proclamation?

A. Sick leave.

B. Paternity leave.

C. Maternity leave.

D. Mourning leave.

E. Annual leave.

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